

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Filed:

MURAT AKINCI,

Index No.:

Plaintiff,

Plaintiff designates BRONX
County as the place of trial.

-against-

S U M M O N S

CITY OF NEW YORK, JUAN CABRERA AND THOMAS
DELLAPORTA,

The basis of venue is
Place of Incident:
Bronx County

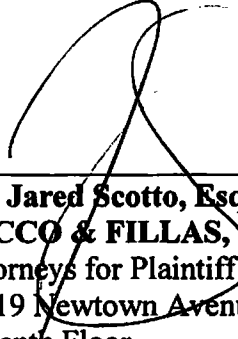
Defendants.

To the above-named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer on the plaintiff's attorneys within 20 days after the service of this summons, exclusive of the day of service of this summons, or within 30 days after service of this summons is complete if this summons is not personally delivered to you within the State of New York.

In case of your failure to answer this summons, a judgment by default will be taken against you for the relief demanded in the complaint, together with the costs of this action.

Dated: Astoria, New York
February 25, 2021



By: Jared Scotto, Esq.
SACCO & FILLAS, LLP
Attorneys for Plaintiff
31-19 Newtown Avenue
Seventh Floor
Astoria, New York 11102
(718) 746-3440
Our File # 24274-20

TO:

DEFENDANTS:

CITY OF NEW YORK
100 Church Street
New York, New York 10007

JUAN CABRERA
1 Police Plaza
New York, NY 10007

THOMAS DELLAPORTA
1 Police Plaza
New York, NY 10007

**FORWARD THIS IMMEDIATELY TO YOUR ATTORNEY OR INSURANCE
COMPANY**

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

MURAT AKINCI,

Plaintiff,

**VERIFIED
COMPLAINT**

-against-

CITY OF NEW YORK, JUAN CABRERA AND THOMAS
DELLAPORTA,

Defendants.

Plaintiff, MURAT AKINCI, by his attorneys, SACCO & FILLAS, LLP, as and for his
Verified Complaint, respectfully alleges, upon information and belief:

1. Plaintiff, MURAT AKINCI, at all times herein mentioned was and still is a resident of the County of Queens and the State of New York.
2. At all times herein mentioned, defendant CITY OF NEW YORK, was and still is a municipal corporation, created, organized and existing under and by virtue of the laws of the State of New York.
3. Defendant, JUAN CABRERA, at all times herein mentioned was and still is a resident of the State of New York.
4. Defendant, THOMAS DELLAPORTA, at all times herein mentioned was and still is a resident of the State of New York.
5. On April 6, 2020, defendant, CITY OF NEW YORK, owned, operated, maintained and controlled the New York City Police Department.
6. On April 6, 2020, defendant, CITY OF NEW YORK, employed defendant JUAN CABRERA.
7. On April 6, 2020, defendant, CITY OF NEW YORK, employed defendant THOMAS DELLAPORTA.

NOTICE OF CLAIM

8. Prior to the commencement of this action, a notice of claim in writing was served on behalf of MURAT AKINCI, upon Defendant, CITY OF NEW YORK in accordance with Section 50-e of the General Municipal Law.

9. Within ninety days (90) of the occurrence herein, a notice of claim in writing was served on behalf of MURAT AKINCI, upon Defendant, CITY OF NEW YORK, in accordance with Section 50-e of the General Municipal Law.

10. Within ninety days (90) of April 26, 2020, a notice of claim in writing was served on behalf of MURAT AKINCI, upon Defendant, CITY OF NEW YORK, in accordance with Section 50-e of the General Municipal Law.

11. Prior to the commencement of this action, notice of the intention of MURAT AKINCI to commence an action, unless the claim presented was adjusted within the prescribed time as set forth by applicable law to adjust such claims, was served on behalf of MURAT AKINCI, upon Defendant, CITY OF NEW YORK.

12. Although more than thirty (30) days have elapsed since service of such notice of claim, CITY OF NEW YORK neglected and has refused to pay said claim or adjust same.

13. A hearing pursuant to General Municipal Law 50-h has was scheduled for February 8, 2021..

14. This action is commenced within one (1) year from April 6, 2020, the date of the malicious prosecution as herein set forth occurred.

AS AND FOR A FIRST CAUSE OF ACTION FOR MALICIOUS PROSECUTION

15. On or about April 6, 2020, Plaintiff, MURAT AKINCI, was wrongfully arrested.

16. On or about April 6, 2020, Plaintiff, MURAT AKINCI, was wrongfully arrested and wrongfully arraigned on charges of New York Penal Law 165.05 02, Unauthorized use of a vehicle in the third degree.

17. At all times herein mentioned, MURAT AKINCI, was maliciously and without probable reason or cause, inculpated in criminal actions in which he did not participate, by CITY OF NEW YORK.

18. At all times herein mentioned, the defendant CITY OF NEW YORK, maliciously instituted judicial proceedings without probable cause for doing so, which forced MURAT AKINCI to expend money and retain an attorney for the scheduled Court hearings.

19. The cause of action for malicious prosecution arose on January 27, 2021, with the dismissal of the criminal action against MURAT AKINCI in the Bronx County, City and State of New York.

20. The charges were lodged against the plaintiff without probable cause or justification, and were designed to harass and intimidate the plaintiff, to cause the plaintiff to expend great sums of money for his defense, to embarrass the plaintiff in the community, and among his friends and relatives, employer, and co-employees, and to subject plaintiff to a possible term of imprisonment.

21. By reason of the malicious prosecution, MURAT AKINCI was deprived of his liberty and was subjected to scorn and ridicule. Petitioner suffered pain and distress of mind and body. Petitioner suffered shock and embarrassment. Petitioner was arrested, detained, and was required to spend large sums of money to defend himself against the prosecution in the Criminal Court of City Of New York, County of Bronx, and in the proceeding before the State. Plaintiff suffered losses from his business and was degraded in the esteem of the community.

22. The defendants' conduct constituted malicious prosecution on the part of the defendants against Plaintiff, and this malicious prosecution has caused Plaintiff to undergo extreme mental pain and anguish, humiliation, and damage to his reputation.

23. This malicious prosecution was encouraged, aided, abetted, and incited voluntarily and willfully by the defendant, CITY OF NEW YORK.

24. The proceeding was prosecuted with actual malice against the plaintiff, MURAT AKINCI.

25. This action falls within one or more of the exceptions set forth in Section 1602 of the Civil Practice Law and Rules.

26. The plaintiff, because of the foregoing reckless and malicious actions, is entitled to exemplary or punitive damages against the defendants, and each of them, in a sum which exceeds the jurisdictional limit of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION FOR ABUSE OF PROCESS

27. Plaintiff repeats and realleges each and every allegation contained in the above paragraphs of the Complaint as if fully set forth at length herein.

28. The defendant herein, THE CITY OF NEW YORK wrongfully and maliciously and with intent to injure plaintiff, prosecuted a criminal action against the Plaintiff.

29. By reason of the foregoing abuse of process plaintiff was deprived of his liberty, suffered pain and distress of mind and body and sustained significant emotional pain and suffering.

30. The above acts constituted reckless, wanton misconduct and were willfully and maliciously directed against the plaintiff.

31. The plaintiff, because of the foregoing reckless and malicious actions, is entitled to exemplary or punitive damages against the defendant, THE CITY OF NEW YORK in a sum which exceeds the jurisdictional limit of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION FOR WRONGFUL ARREST

32. Plaintiff repeats and realleges each and every allegation contained in the above paragraphs of the Complaint as if fully set forth at length herein.

33. Specifically, on April 6, 2020, MURAT AKINCI was wrongfully arrested under arrest number B20610909.

34. The charges were lodged against the plaintiff without probable cause or justification, and were designed to harass and intimidate the plaintiff, to cause the plaintiff to expend great sums of money for his defense, to embarrass the plaintiff in the community, and among his friends and relatives, employer, and co-employees, and to subject plaintiff to a possible term of imprisonment.

35. The defendant's conduct constituted malicious prosecution on the part of the defendant against the plaintiff, and this malicious prosecution has caused the plaintiff to undergo extreme mental pain and anguish, humiliation, and damage to his reputation.

36. At all times herein mentioned, MURAT AKINCI, was maliciously and without probable reason or cause, inculpated in criminal actions in which he did not participate, by CITY OF NEW YORK.

37. At all times herein mentioned, the defendant CITY OF NEW YORK, maliciously instituted judicial proceedings without probable cause for doing so, which forced MURAT AKINCI to expend money and retain an attorney for the scheduled Court hearings.

38. The proceeding was prosecuted with actual malice against the plaintiff, MURAT AKINCI.

39. By reason of the wrong arrest, MURAT AKINCI, was deprived of his liberty and was subjected to scorn and ridicule. Plaintiff suffered pain and distress of mind and body and sustained significant emotional pain and suffering. Plaintiff suffered shock and embarrassment. Plaintiff was arrested, detained, fingerprinted, photographed, and was required to spend large

sums of money to defend herself against the prosecution in the Criminal Court of New York County, and in the proceeding before the State. Petitioner suffered losses and was degraded in the esteem of the community.

40. This action falls within one or more of the exceptions set forth in Section 1602 of the Civil Practice Law and Rules.

41. The defendants' conduct was willful, wanton, reckless, malicious and/or exhibited a gross indifference to, and a callous disregard for human life, safety and the rights of others, and more particularly, the rights, life and safety of MURAT AKINCI as a result of the defendant's malicious prosecution.

42. The above acts constituted reckless, wanton misconduct and were willfully and maliciously directed against the plaintiff.

43. The plaintiff, because of the foregoing reckless and malicious actions, is entitled to exemplary or punitive damages against the defendants, CITY OF NEW YORK in a sum which exceeds the jurisdictional limit of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A FOURTH CAUSE OF ACTION

44. Plaintiff repeats and realleges each and every allegation contained in the above paragraphs of the Complaint as if fully set forth at length herein.

45. That the aforesaid conduct on the part of the defendants, CITY OF NEW YORK, JUAN CABRERA and THOMAS DELLAPORTA constituted a violation of the plaintiff, MURAT AKINCI 's civil rights under 42 USC 1983 in that the plaintiff was deprived of his rights, privileges and immunities secured to his by the Constitution and laws of the U.S.A. and the New York State Constitution by one who under color of a statute or regulation of a state,

caused the plaintiff to be so deprived.

46. That the aforesaid abuse of process on the plaintiff by the defendant, and the subsequent false arrest and imprisonment of the plaintiff by the defendant, deprived the plaintiff of the constitutional right to bodily security and liberty under the Fourteenth Amendment to the United States Constitution, and was an unreasonable physical seizure of the plaintiff under the Fourth Amendment to the United States Constitution.

47. That as a result of the aforesaid occurrence, the plaintiff MURAT AKINCI, was caused to and did sustain severe, serious and protracted injuries to his person and body.

48. Due to defendant's negligence, plaintiff is entitled to damages in a sum which exceeds the jurisdictional limit of all lower Courts which would otherwise have jurisdiction.

49. That said incident and resulting injuries to the plaintiff, MURAT AKINCI, were caused solely as a result of the unintentional consequence of an intentional act on the part of the arresting officer, without any culpable conduct on the part of the plaintiff, MURAT AKINCI, contributing thereto.

50. That as a result of the foregoing, plaintiff is entitled to damages in a sum which exceeds the jurisdictional limit of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A SIXTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF
AGAINST THE DEFENDANTS FOR
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS

51. Plaintiff repeats and realleges each and every allegation contained in the above paragraphs of the Complaint as if fully set forth at length herein.

52. Defendants intentionally and deliberately inflicted emotional distress on MURAT AKINCI by maliciously prosecuting plaintiff, or by abusing the lawful process by unlawful

purpose, or by violating MURAT AKINCI's constitutional rights, or by falsely arresting and imprisoning the plaintiff, by conspiring against MURAT AKINCI, or by interfering with plaintiff's state civil rights by threats, coercion, or intimidation, or knew or should have known that emotional distress was the likely result of their conduct.

53. Defendants conduct was extreme and outrageous, beyond all possible bounds of decency and utterly intolerable in a civilized community.

54. The actions of the Defendants were the cause of MURAT AKINCI's distress.

55. MURAT AKINCI is a reasonable man.

56. The emotional distress sustained by MURAT AKINCI was severe and of a nature that no reasonable man could be expected to endure. (Agis v. Howard Johnson Co., 371 Mass. 140, 145 (1976).

57. As a result of the Defendants' extreme and outrageous conduct, Plaintiff was, is, and, with a high degree of likelihood, will continue to be emotionally distressed due to the intentional exclusion. ("Extreme and outrages conduct is not required if the emotional distress resulted from the commission of another tort." American Velodur Metal, Inc. v. Schinabek. 20 Mass.App.Ct. 460, 470-471 (1985).

58. Defendant CITY OF NEW YORK is liable under the doctrine of *respondeat superior*.

59. As a result of the Defendants' extreme and outrageous conduct, Smith has suffered and will continue to suffer mental pain and anguish, severe emotional trauma, embarrassment, and humiliation.

60. Due to defendants' negligence, plaintiff is entitled to damages in a sum which exceeds the jurisdictional limit of all lower Courts which would otherwise have jurisdiction.

WHEREFORE, the plaintiffs demand:

A. Judgment awarding damages on the first cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

B. Judgment awarding damages on the second cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

C. Judgment awarding damages on the third cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

D. Judgment awarding damages on the fourth cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

E. Judgment awarding damages on the fifth cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

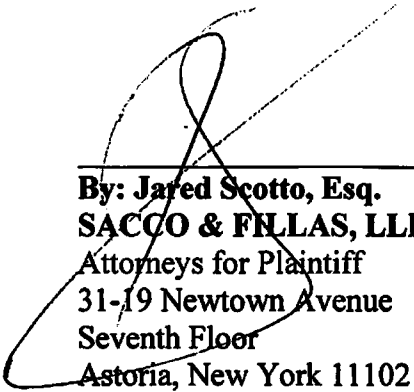
F. Judgment awarding damages on the sixth cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

G. Interest, the costs and disbursements of this action, together with such other and further relief as to this Court seems just and proper.

WHEREFORE, the plaintiff demands judgment awarding damages and punitive damages, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction, together with interest and the costs and disbursements

of this action, and such other and further relief as to this Court seems just and proper.

Dated: Astoria, New York
February 25, 2021



By: Jared Scotto, Esq.
SACCO & FILLAS, LLP
Attorneys for Plaintiff
31-19 Newtown Avenue
Seventh Floor
Astoria, New York 11102
(718) 746-3440
Our File # 24274-20

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS**

MURAT AKINCI,

INDEX NO.:

Plaintiff,

**INDIVIDUAL
VERIFICATION**

-against-

**CITY OF NEW YORK, JUAN CABRERA AND
THOMAS DELLAPORTA,**

Defendants.

STATE OF NEW YORK)

ss.:

COUNTY OF QUEENS)

Murat Akinci, sworn, deposes and says:

That I am the plaintiff in the within action.

I have read the foregoing SUMMONS and VERIFIED COMPLAINT and know the contents thereof and the same is true to the best of my knowledge, except as to those matters herein stated to be alleged upon information and belief and that as to those matters, I believe them to be true.



Murat Akinci

**Sworn to before me this
4 day of March, 2021**



Notary Public

**JULIE AKHUNOVA
NOTARY PUBLIC, STATE OF NEW YORK
Registration No. 01AK6110104
Qualified in Queens County
Commission Expires August 18, 2024 24**

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

MURAT AKINCI,

Plaintiff,

-against-

CITY OF NEW YORK, JUAN CABRERA AND THOMAS DELLAPORTA,

Defendants.

SUMMONS and VERIFIED COMPLAINT

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed documents are not frivolous.

Dated: Astoria, NY
February 25, 2021

Signature: _____

By: Jared Scotto, Esq.

SACCO & FILLAS, LLP

Attorneys for Plaintiff

MURAT AKINCI

31-19 Newtown Avenue

Seventh Floor

Astoria, New York 11102

(718) 746-3440

Our File # 24274-20